

5. **Can a person accept a bounty and repudiate a trust under the same will?** — If a person be nominated a trustee in a will and also take a benefit under it, he can claim the testator's bounty, and yet disclaim the *onus* of the trust (*h*); for an executor, who is also a legatee, may renounce probate and yet claim the legacy, and it is difficult to point out a distinction between the two cases. But if the benefit be *annexed to the office* of trustee or executor, and he does not act, he cannot claim the benefit (*i*).

* 6. **Opinion of counsel as to disclaimer.** — If one be [*198] named as trustee without any authority from himself, he is justified (as between himself and the parties interested in the trust who require a disclaimer from him and thereby undertake to pay all proper costs,) in taking the opinion of counsel upon the propriety of executing a deed of disclaimer (*a*).

7. **Disclaimer of trust by statement of defence.** — A trust may be disclaimed at the bar of the Court (*b*), or by [a statement of defence,] and the person named as trustee will, like any other person made a party to the suit unnecessarily, be entitled to his costs (*c*); (but only as between party and party (*d*);) though the action which might have been dismissed against him at an earlier stage be brought to a hearing (*e*); and if his [statement] be needlessly long, he will only be allowed what would have been the reasonable costs of a simple disclaimer (*f*).

8. **May be shown by acts.** — A trust may also be repudiated on the evidence of conduct without any express declaration

acted, though they had conveyed the estate instead of disclaiming. See *Urch v. Walker*, 3 M. & C. 702; *Richardson v. Hulbert*, 1 Anst. 65.

(*h*) See *Talbot v. Radnor*, 3 M. & K. 254; *Pollexfen v. Moore*, 3 Atk. 272; *Andrew v. Trinity Hall*, Camb. 9 Ves. 525; *Warren v. Rudall*, 1 J. & H. 1.

(*i*) *Slany v. Witney*, 2 L. R. Eq. 418; and see *Lewis v. Mathews*, 8 L. R. Eq. 277.

(*a*) *In re Tryon*, 7 Beav. 496.

(*b*) *Ladbroke v. Bleaden*, M. R. 16 Jur. 630; *Foster v. Dawber*, 8 W. R. 646; and see *Re Ellison's Trust*, 2 Jur. N. S. 62.

(*c*) *Hickson v. Fitzgerald*, 1 Moll. 14.

(*d*) *Norway v. Norway*, 2 M. & K. 278, overruling *Sherratt v. Bentley*, 1 R. & M. 655; see *Legg v. Mackrell*, 1 Giff. 166; *Bulkeley v. Earl of Eglinton*, 1 Jur. N. S. 994.

(*e*) *Bray v. West*, 9 Sim. 429.

(*f*) *Martin v. Persse*, 1 Moll. 146; *Parsons v. Potter*, 2 Hog. 281.